Fort Bend County District Court

Cause No. 2024-CV-0002

Eric Wells, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 23, 2024
Plaintiff's counsel:	Danielle Sawyer, Valentine & Joyce Injury Lawyers

PARTIES

Plaintiff Eric Wells is an individual residing in Texas who brings this action to recover damages arisnig from a motor vehicle collision. Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas, which issued the policy of automobile liability and uninsured/underinsured motorist coverage under which Plaintiff seeks benefits. Defendant may be served through its registered agent for service of process.

FACTS

On June 11, 2023, Plaintiff was lawfully operating a vehicle on a public roadway in Katy, Texas, when another vehicle traveling in the opposite direction crossed the center line and collided head-on with Plaintiff's vehicle. The collision occurred at a low rate of speed, yet the impact forced Plaintiff's head and body forward and back against the restraint system and interior of the vehicle. Plaintiff reported the collision to Defendant promptly and provided the information requested, and Plaintiff sought medical evaluation the same day. Defendant has not paid the claim in an amount sufficient to compensate Plaintiff for the injuries sustained.

NEGLIGENCE

The operator of the other vehicle owed a duty to operate that vehicle with reasonable care, keep a proper lookout, and remain within his or her lane of traffic. That operator breahced this duty by crossing the center line and striking Plaintiff's vehicle. Defendant, as the insurer responsible for coverage under the applicable policy, is obligated to hnoor its contractual duties of good faith and fair dealing, including timely and reasonable evaluation and payment of covered claims. Defendant breached those duties by failing to adequately investigate, evaluate, and pay Plaintiff's claim, and such conduct proximately caused Plaintiff additional harm.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, light sensitivity, and cognitvie difficulty. Plaintiff has incurred medical expenses, lost wages, and loss of earning capacity, and continues to experiecne pain, mental anguish, and impairment of daily life. Plaintfif seeks recovery of all actual damages allowed by Texas law, together with prejudgment and postjudgment interest and costs of court. Plaintiff demands damages in the amount of $40,000.00.